Saleem vs State Of U.P. And Another on 10 August, 2021

Author: Sanjay Kumar Singh

Bench: Sanjay Kumar Singh

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 72

Case :- CRIMINAL MISC. BAIL APPLICATION No. - 9553 of 2021

Applicant :- Saleem

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Rajesh Kumar Pandey

Counsel for Opposite Party :- G.A.

Hon'ble Sanjay Kumar Singh,J.
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Heard learned counsel for the applicant and learned Additional Government Advocate for the State and perused the material placed on record.

By means of this application, applicant-Saleem, who is involved in Case Crime No. 380 of 2020, under sections 147, 363, 342, 354(B), 375(C)/376 DA, 506 IPC and 5(G)/6, 14 of Protection of Children from Sexual Offences Act, section 67(B) of Information Technology (Amendment) Act, police station Pahasu, district Bulandshahr, seeks enlargement on bail during the pendency of trial.

As per prosecution case, in brief, the informant Smt. Aneesa, who is the mother of the victim, lodged first information report dated 21.11.2020 for the offence under sections 147, 323, 376, 354 (Ka), 506 IPC and section 3/4 of Protection of Children from Sexual Offences Act, and section 67 of Information Technology (Amendment) Act, against five accused persons, namely, Pappu, Saleem (applicant), Najma, Bhuri and Dilshad in respect of an incident, which took place on 05.11.2020

alleging inter alia that accused Pappu and Saleem sexually abused her daughter and outraged her modesty, who is aged about 13 years and prepared obscene video clip of the victim and made it viral. When the informant asked the accused persons for deleting such video clip of the victim, the informant was assaulted by kicks and fists by accused persons-Pappu, Saleem (applicant), Najma, Bhuri and Dilshad and co-accused Pappu armed with axe with an intention to kill the informant ran after her. She entered Umesh Sharma's house and saved her life.

It is submitted by learned counsel for the applicant that the applicant is absolutely innocent and has falsely been implicated in the present case with some ulterior motive. It is further submitted by learned counsel for the applicant that the first information report has been lodged by the informant after an inordinate delay of about 16 days. It is next submitted by the learned counsel for the applicant that the applicant has not outraged the modesty of the victim and has not made any obscene video clip of the victim as alleged in the FIR. Learned counsel for the applicant also contended that there are inconsistencies in both the statements of the victim recorded under sections 161 and 164 Cr.P.C. As per medical examination report, the victim has refused for her internal examination. Main substratum of argument of learned counsel for the applicant is that in the first information report as well as in the statement under section 161 Cr.P.C., allegation has been levelled against the applicant and co-accused persons, but in the statement recorded under section 164 Cr.P.C. of the victim, the names of Mansur and Omveer came into light. There is also no medical examination report of the informant. Learned counsel for the applicant also alleged that the informant has taken a loan of Rs. 60,000/- from the applicant, but when the applicant demanded his money back, some hot-talk has taken place between them, and thereafter the informant has falsely roped the applicant in the present case along with other co-accused persons. It is also submitted that the applicant has no criminal antecedent to his credit and is facing detention since 21.11.2020. It is next contended that there is no chance of the applicant of fleeing away from the judicial process or tampering with the prosecution evidence. Learned counsel for the applicant lastly submitted that if the applicant is released on bail, he will not misuse the liberty of bail and will cooperate in the early disposal of the case.

Per contra, learned Additional Government Advocate vehemently opposed the prayer for bail by contending that the victim is minor girl, who is aged about 13 years. As per first information report, the accused persons made obscene video clip of the victim and on the pretext of said video clip viral, the accused persons blackmailing a minor girl and outraged her modesty, which is heinous in nature. The alleged offence committed by the accused persons with a minor child creates an atmosphere of fear, which is universally abhorred by the society, therefore, the applicant should not be granted bail.

Considering the facts and circumstances of the case, submissions advanced on behalf of parties, gravity of the offence and severity of the punishment, I do not find any good ground to grant bail to the applicant.

Accordingly, the bail application is rejected.

However, considering the facts and circumstances of the case, the trial court is directed to make an endeavour to conclude the trial, expeditiously, preferably within a period of one year from the date of production of a certified copy of this order without granting any unnecessary adjournment to either of the parties.

It is directed that in case certified copy of this order is not issued due to COVID-19 pandemic, the copy of the order downloaded from the official website of the Allahabad High Court shall be acted upon.

Order Date :- 10.8.2021 Sazia